

Cause No. _____
(1)

In the Matter of

§ In the

§ _____
(2)

Maria-Alejandra O'Shaughnessy-Whitfield
(3)

§ _____ County, Texas
(4)

Petition for Order of Nondisclosure **Under Section 411.0735**

Maria-Alejandra O'Shaughnessy-Whitfield (5) ("Petitioner") respectfully petitions the court for an order of nondisclosure under Government Code Section 411.0735 for the misdemeanor described below.

1. The Underlying Order and Completion of the Sentence

Petitioner was convicted of the misdemeanor offense of _____ (6) in Criminal Cause No. _____ (7) in this court on _____ (8).

Following the conviction, Petitioner was sentenced to _____ (9). Petitioner completed the sentence on _____ (10). A copy of the judgment or other document showing Petitioner's sentence _____ (11) attached. Evidence of Petitioner's completion on the sentence, including any term of confinement imposed and payment of all fines, costs, and restitution, if any, _____ (12) attached.

2. Petitioner Satisfies the Requirements of Section 411.0735, Government Code

Petitioner satisfies the requirement under Section 411.0735, Government Code, in that:

- Petitioner is ineligible for an order of nondisclosure under Government Code Section 411.073;
- Petitioner was convicted of a misdemeanor, but not a misdemeanor for any of the following:
 - Driving/Operating Watercraft Under the Influence of Alcohol By a Minor under Alcoholic Beverage Code Section 106.041;
 - DWI under Penal Code Section 49.04;
 - Flying While Intoxicated under Penal Code Section 49.05;
 - Boating While Intoxicated under Penal Code Section 49.06;
 - Assembling or Operating an Amusement Ride While Intoxicated under Penal Code Section 49.065; or
 - An Organized Crime under Penal Code Chapter 71;
- Petitioner completed the sentence for the misdemeanor, including any confinement imposed and payment of all fines and costs and any restitution imposed;
- Petitioner satisfies the requirements of Government Code Section 411.074;
- Petitioner has never been previously convicted of or placed on deferred adjudication community supervision for another offense, other than a traffic offense punishable by fine only;
- Petitioner's misdemeanor is not violent or sexual in nature, unless it is a misdemeanor under Penal Code Section 22.01 for an assault; and
- Petitioner waited the requisite time before filing this petition. If Petitioner's misdemeanor is not punishable by fine only, Petitioner waited 2 years after completing the sentence before filing this petition.

3. Petitioner Satisfies the Requirements of Government Code Section 411.074

Petitioner satisfies the requirements of Section 411.074, Government Code, in that:

- Petitioner was not convicted of or placed on deferred adjudication community supervision for another offense, other than a traffic offense punishable by fine only, after the court pronounced the sentence for the misdemeanor or during the two-year waiting period, if applicable, following completion of the sentence for the misdemeanor (The two-year waiting period is applicable if Petitioner's misdemeanor is a Class A or B misdemeanor);
- Petitioner was not and has not ever been previously convicted of or placed on deferred adjudication community supervision for any of the offenses listed below:

(A) An offense requiring registration as a sex offender under Code of Criminal Procedure Chapter 62;

(B) An offense under Penal Code Section 20.04 (Aggravated Kidnapping);

(C) an offense under any of the following sections of the Penal Code:

- 19.02 (Murder);
- 19.03 (Capital Murder);
- 20A.02 (Trafficking of Persons);
- 20A.03 (Continuous Trafficking of Persons);
- 22.04 (Injury to a Child, Elderly Individual, or Disabled Individual);
- 22.041 (Abandoning or Endangering a Child);

- 25.07 (Violation of Court Orders or Conditions of Bond in a family violence, sexual assault or abuse, indecent assault, stalking, or trafficking case);
- 25.072 (Repeated Violation of Certain Court Orders or Conditions of Bond in a family violence, child abuse or neglect, sexual assault or abuse, indecent assault, stalking, or trafficking case); or
- 42.072 (Stalking); or

(D) Any other offense involving family violence, as defined by Family Code Section 71.004; and

- The court did not make an affirmative finding that Petitioner's misdemeanor involved family violence, as defined by Family Code Section 71.004.

4. Petitioner is Entitled to File a Petition for an Order of Nondisclosure

A person is entitled to file a petition for an order of nondisclosure under Government Code Section 411.0735 if the person satisfies the requirements of Sections 411.0735 and 411.074 of the Code.

As indicated above, Petitioner satisfies the requirements of both sections

5. Issuance of an Order of Nondisclosure is in the Best Interest of Justice

Issuance of the order is in the best interest of justice.

6. The Fee to File the Petition has been Paid or Otherwise Satisfied

Filing fees and court costs are required upon filing this petition. Alternatively, a petitioner may submit a *Statement of Inability to Afford Payment of Court Costs* if the Petitioner is unable to pay the required fees and costs. Petitioner has included ⁽¹³⁾

- ☐ the required fees and costs.
- ☐ a Statement of Inability to Afford Payment of Court Costs.

7. Prayer for Relief

Petitioner respectfully asks the court to grant Petitioner's request for an order of nondisclosure under Government Code Section 411.0735.

Respectfully submitted,

Signature (14)

Maria-Alejandra O'Shaughnessy-Whitfield

Printed Name (15)

Address (16)

City, State, Zip (17)

(361) 555-0199 ext. 4417

Telephone Number (18)

Cause No. _____

In the Matter of

§ In the

§ _____

Maria-Alejandra O'Shaughnessy-Whitfield

§ _____ County, Texas

ORDER OF NONDISCLOSURE

On _____, the Court considered Petitioner's petition for an order of nondisclosure.

The State was given notice of the petition and an opportunity to request a hearing.

The State

☐

requested a hearing.

☐

did not request a hearing.

The Court

☐

conducted a hearing on _____.

☐

did not conduct a hearing.

After consideration and a hearing, if a hearing was held, the Court **FINDS** that Petitioner is entitled to file a petition for an order of nondisclosure under the section of

the Government Code indicated below and issuance of an order of nondisclosure is in the best interest of justice.

- ☐ Texas Government Code Section 411.0725
- ☐ Texas Government Code Section 411.073
- ☐ Texas Government Code Section 411.0735

Accordingly, **IT IS HEREBY ORDERED** that criminal justice agencies are prohibited from disclosing to the public criminal history record information related to the offense(s) of _____ in Criminal Cause No. _____ in _____ County, Texas.

IT IS FURTHER ORDERED that the criminal history record information pertaining to the arrest and prosecution of Petitioner for the above-referenced offense(s), as reflected in the above-referenced criminal cause number, shall be sealed and disclosed only to individuals and agencies listed in Government Code Section 411.076(a).

IT IS FURTHER ORDERED that the court clerk shall send all relevant criminal history record information contained in this order or a copy of this order to the Crime Records Service of the Texas Department of Public Safety (hereinafter "DPS") by certified mail (return receipt requested), secure electronic mail, electronic transmission, or facsimile transmission no later than the 15th business day after the order issues, in accordance with Government Code Section 411.075(a).

IT IS FURTHER ORDERED that DPS shall seal the criminal history record information that is the subject of this order and forward the relevant information contained in this

order or a copy of this order to all state and federal agencies listed in Government Code Section 411.075(b) by certified mail (return receipt requested), secure electronic mail, electronic transmission, or facsimile transmission no later than 10 business days after receiving information contained in this order or a copy of this order from the court clerk, in accordance with Government Code Section 411.075(b).

IT IS FURTHER ORDERED that a person, agency, or entity shall seal any criminal history record information that is the subject of this order and maintained by the person, agency, or entity no later than 30 business days after the person, agency, or entity receives relevant information contained in this order or a copy of this order from DPS, a court clerk, or the person who is the subject of the order, in accordance with Government Code Section 411.075(d).

IT IS FURTHER ORDERED that the clerk shall seal all court records containing information that is the subject of this order as soon as practicable after the clerk sends a copy of this order or all relevant criminal history record information contained in this order to DPS, in accordance with Government Code Section 411.076(b).

Signed on _____.

Judge Presiding

Court/County

PROOF THAT THE DISTRICT ATTORNEY RECEIVED A COPY OF THE PETITION

READ THIS FIRST: YOU MAY NOT NEED THIS PAGE.

Government Code Sec. 411.0745(e) makes THE COURT responsible for giving the State notice of your petition and an opportunity to request a hearing, and the committed record states that you should not be charged for that notice. You are not the one who serves the State.

OCA instructions nonetheless direct a petitioner to show proof that the district attorney received a copy of the petition, and some counties expect it. ASK THE CLERK OF THE COURT YOU ARE FILING IN whether that county wants this. If it does not, leave this page out.

Cause No.:

Court and county:

PROOF THAT THE DISTRICT ATTORNEY RECEIVED A COPY

I, Maria-Alejandra O'Shaughnessy-Whitfield, state that a copy of my Petition for an Order of Nondisclosure under Government Code Sec. 411.0735 was delivered to the district attorney as follows:

District attorney - name and office:

.....

Address:

.....

How it was delivered:

Date the district attorney received it:

.....

Maria-Alejandra O'Shaughnessy-Whitfield

Date:

(You sign and date this when the copy has actually been delivered. Nothing on this page is signed or dated for you, and no district attorney's name or address is printed here: the platform holds none for any Texas county and does not guess one.)

Route:

obligation:track-pathway:TX:tx_nd_conviction_no_supervision:petitioned-nondisclosure-for-an-eligible-conviction-411-0735

NOTICE: THIS DOCUMENT CONTAINS SENSITIVE DATA
AVISO: ESTE DOCUMENTO CONTIENE INFORMACIÓN
CONFIDENCIAL



Statement of Inability to Afford Payment of Court Costs or an Appeal Bond

Declaración sobre Incapacidad de Pago de Costas de Tribunal o de una Fianza de Apelación

Cause Number
Número de Caso

The Clerk's office will fill in the Cause Number when you file this form.

El Secretario del Tribunal anotará el Número de Caso cuando usted presente este formulario.

v.

Copy information listed at the top left of the petition here.

Copie aquí la información ubicada en la parte superior izquierda del escrito de la demanda.

Copy information listed at the top right of the petition here.

Copie aquí la información ubicada en la parte superior derecha del escrito de la demanda.

Court Number
Número del Tribunal

_____, Texas
County
Condado

- ☐ District Court
Tribunal de Distrito
- ☐ County Court
Tribunal del Condado
- ☐ County Court at Law
Tribunal Estatutario
- ☐ Justice Court
Juzgado de Paz
- ☐ Probate Court
Juzgado Sucesorio

1. Your Information / Su Información

- My full legal name is / **Mi nombre legal completo es**
Maria-Alejandra O'Shaughnessy-Whitfield

First Middle Last / Nombre de Pila Segundo Nombre Apellido

- My date of birth is / **Mi fecha de nacimiento es**
1972-12-31

Month Day Year / Mes Día Año

- My address is / **Mi dirección es**

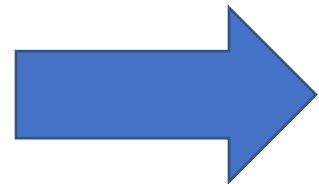
Home / **Domicilio** 1188 Upper Notch Crossing Road, Apartment 14B, Corpus Christi, Texas 78418-2214

Mailing / **Dirección Postal**

- My phone number / **Mi número telefónico** (361) 555-0199 ext. 4417

- My email I check often / **Mi correo electrónico que reviso con frecuencia**
maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Go to next page



Pase a la siguiente página

2. About My Dependents / Mis Dependientes

"The people who depend on me financially are listed below." **Use initials only for children under 18.** If needed, attach a separate piece of paper to list more dependents.

"Las personas a continuación dependen económicamente de mí." **Use iniciales para los menores de 18 años** y, si es necesario, anexe una hoja por separado para enumerar a todos sus dependientes.

Name Nombre	Age Edad	Relationship to me Parentesco Conmigo

3. Are you represented by Legal Aid? ¿Está siendo representado por alguna entidad de asistencia legal?

Check only one box. Seleccione solo una casilla.

☐ I am being represented in this case for free by an attorney who works for a legal aid provider or who received my case through a legal aid provider. I have attached the certificate the legal aid provider gave me as "Exhibit: Legal Aid Certificate."

Me está representando gratuitamente un abogado que trabaja para una entidad de asistencia legal o que recibió mi caso de una entidad de asistencia legal. El certificado que la entidad de asistencia legal me entregó lo adjunto bajo el título, "Anexo: Certificado de Asistencia Legal."

or / o

☐ I am not represented by legal aid.

No me está representando ninguna entidad de asistencia legal.



4. Public Benefits / Beneficios de Asistencia Pública

- Do you or any of your dependents receive public benefits?
¿Recibe usted o sus dependientes beneficios de asistencia pública?

☐ Yes / *Sí*

☐ No / *No*

- If you answered yes, check all that apply and attach proof to this form, such as a copy of an eligibility form or check.

Si respondió con un Sí, marque todas las casillas que apliquen y adjunte a este formulario comprobantes, tales como una copia de la carta autorizando que reciba estos beneficios o una copia del cheque que recibe.

☐ Food stamps/SNAP
Cupones de comida/SNAP

☐ TANF

☐ Medicaid

☐ CHIP

☐ SSI/SSDI

☐ WIC

☐ Lifeline

☐ Public Housing or Section 8 Housing
Asistencia de Vivienda / Programa de Vivienda bajo Sección 8

☐ Low-Income Home Energy Assistance
Asistencia con Energía Eléctrica

☐ Community Care via HHS
Ayuda Comunitaria bajo HHS

☐ LIS in Medicare ("Extra Help")
Subsidio Adicional de Medicare bajo el Programa LIS

☐ Needs-based VA Pension
Pensión para Veteranos de Guerra en función a necesidades

☐ Child Care Assistance under Child Care and Development Block Grant
Asistencia con Guardería bajo el Programa CCDBG

☐ County Assistance, County Health Care, or General Assistance (GA)
Asistencia del Condado, Asistencia Médica del Condado, o Asistencia General (GA)

☐ Other / *Otros beneficios*

☐ Other / *Otros beneficios*



5. What are your monthly income sources? ¿Cuáles son sus fuentes de ingresos mensuales?

➤ My **take-home** pay is \$_____ in monthly wages.

Mi **pago neto** es \$_____ en sueldo mensual.

➤ I work as a _____ (your job title) for _____ (your employer).

Yo trabajo como _____ (título de su puesto) para _____ (compañía o jefe).

➤ \$_____ is my total **monthly** income / son mis ingresos totales **al mes**.

These are my income sources. **Estas son mis fuentes de ingresos.**

➤ \$_____ in unemployment / en beneficios de desempleo.

I have been unemployed since _____ (date).

He estado desempleado desde _____ (indique fecha).

➤ \$_____ in public benefits / en beneficios de Asistencia Pública.

➤ \$_____ from people in my household other than my spouse / de ingresos de otras personas en mi hogar que no son de mi cónyuge.

➤ \$_____ from retirement or pension / de jubilación o pensión.

➤ \$_____ from tips or bonus / de propinas o bonos.

➤ \$_____ from disability / de discapacidad.

➤ \$_____ from worker's comp / de compensación al trabajador.

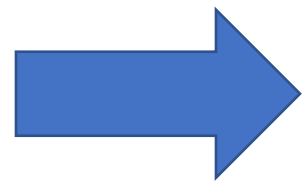
➤ \$_____ from social security / de seguro social.



- \$_____ from military housing / de vivienda militar.
- \$_____ from dividends, interest, or royalties / de dividendos, intereses, o regalías.
- \$_____ from child or spousal support / de manutención de menores o manutención conyugal recibida.
- Answer only if your spouse is not your opponent. Responda tan sólo si su ccónyuge no es parte contraria en esta causa legal.\$_____ from my spouse's income / de ingresos de mi cónyuge.
- \$_____ from other jobs/sources of income / de otros trabajos/ fuentes de ingresos.

Describe / describa:

Go to next page



Pase a la siguiente página

6. What is the value of your assets or property? ¿Cuál es el valor de sus bienes o propiedades?

My property includes: Mis bienes incluyen:	Value / Valor The value is the amount the item would sell for less the amount you still owe on it, if anything. El valor de sus bienes es la cantidad por la que la propiedad o pertenencia se vendería, menos el monto que aún se adeuda, si lo hubiera.
➤ Cash Dinero en efectivo	\$
➤ Bank accounts, other financial assets Cuentas bancarias, otros bienes financieros	
	\$
	\$
	\$
➤ Cars and boats (make and year) Automóviles, lanchas (modelo y año)	
	\$
	\$
	\$
➤ Other property like jewelry, stocks, land, a second house. (Do not list your homestead.) Otros bienes como joyas, acciones, terrenos, una segunda casa. (No indique su hogar familiar.)	
	\$
	\$
	\$
Total Value of Property Valor Total de Sus Bienes	\$



**7. What are your monthly expenses that are not deducted from your paycheck?
¿Cuáles son sus gastos mensuales que no son descontados de su cheque de sueldo?**

My monthly expenses are: Mis gastos mensuales son:	Amount Cantidad
➤ Rent/house payments; maintenance Alquiler/hipoteca; mantenimiento de casa	\$
➤ Food and household supplies Alimentos y artículos para el hogar	\$
➤ Utilities and telephone Luz, gas, agua y teléfono	\$
➤ Clothing and laundry Ropa y lavado de ropa	\$
➤ Medical and dental expenses Gastos médicos y dentales	\$
➤ Insurance (life, health, auto, etc.) Seguros (de vida, médico, de automóvil etc.)	\$
➤ School and childcare Escuelas y guarderías	\$
➤ Transportation, auto repair, gas Transportación, reparaciones de automóviles, gasolina	\$
➤ Child/Spousal support Manutención a Menores/Manutención Conyugal	\$
➤ Debt payments to (list): Pagos por deudas hechas a (indíquelos):	
	\$
	\$
➤ Wages withheld by court order Sueldo retenido por orden judicial	\$
➤ Other expenses (list): Otros gastos (indíquelos):	
	\$
	\$
Total Monthly Expenses Gastos Totales Mensuales	\$



8. Are there debts or other facts explaining your financial situation?
¿Hay deudas u otros factores que expliquen su situación económica?

My debts include (list debt and amount owed):

Mis duedas incluyen (indique deuda y la cantidad que debe):

	\$
	\$
	\$
	\$
	\$

If you want the court to consider other facts, such as unusual medical expenses, family emergencies, etc., attach another page to this form labeled "Exhibit: Additional Supporting Facts."

Si usted desea que el tribunal considere otros factores, tales como gastos médicos excepcionales, emergencias familiares, etc., adjunte al formulario otra hoja con esta información y bajo el título, "Anexo: Información Adicional de Apoyo."

9. Ability to Pay Court Costs. Declaración sobre su Habilidad de Pagar Costas de Tribunal

Check only one box. Seleccione tan solo una casilla.

- ☐ I cannot afford to pay court costs. No puedo pagar las costas de tribunal.
- ☐ I cannot furnish an appeal bond or pay a cash deposit to appeal a justice court decision, and I cannot afford to pay court costs.

No puedo aportar una fianza de apelación ni pagar un depósito en efectivo para apelar la decisión judicial de un magistrado, y no puedo pagar costas de tribunal.

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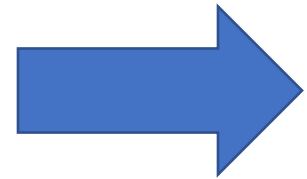
Pase a la siguiente página

10. Declaration/Affidavit. Declaración Escrita Bajo Juramento.

Fill out **only one** box. If you fill out the Declaration, you will not need to sign the form in front of a notary public. If you do not want to list your address for privacy or safety concerns, take the form and photo identification, and fill out the Affidavit box in front of a notary public.

Llene tan **solo una** opción. Si usted llena la Declaración, no necesitará firmar el formulario ante un notario. Si usted no quiere que aparezca su domicilio en el documento para conservar su privacidad o por motivos de su seguridad, lleve el formulario y una identificación con fotografía y llene la sección de la Declaración Escrita Bajo Juramento ante un Notario.

Go to next page



Pase a la siguiente página

Option 1 / Opción 1

Declaration: I declare under penalty of perjury that the foregoing is true and correct.

Declaración: Yo declaro bajo pena de perjurio que la información a continuación es correcta y verdadera.

➤ My name is / Mi nombre es

Maria-Alejandra O'Shaughnessy-Whitfield

➤ My date of birth is / Mi fecha de nacimiento es

____/____/____

➤ My address is / Mi domicilio es

1188 Upper Notch Crossing Road, Apartment 14B, Corpus Christi, Texas 78418-2214

Street, city, zip, country

Calle y número, ciudad, estado, código postal, país

➤

Signature

Firma

➤

Date (month, day, year)

Fecha (mes, día, año)

➤

County, state

Condado, estado

Go to next page



Pase a la siguiente página

Option 2 / Opción 2

Affidavit: I swear under penalty of perjury that the foregoing is true and correct.

Declaración Escrita Bajo Juramento: Yo juro bajo pena de perjurio, que lo que precede es correcto y verdadero.

You fill out this section.

Usted llena esta sección.

➤ Maria-Alejandra O'Shaughnessy-Whitfield

Your printed name

Su nombre en letra de molde

➤

Your signature

Su firma

The notary fills out this section.

El Notario llena esta sección.

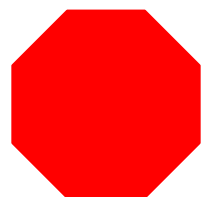
➤

Subscribed before me this day of

Juramentado y suscrito ante mí el día de hoy del mes de

_____, 20____

NOTARY
NOTARIO



FILING INSTRUCTIONS, WHAT IT COSTS, AND WHAT THE ORDER DOES

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

WHICH SECTION THIS IS. Government Code Sec. 411.0735 - an order of nondisclosure after a MISDEMEANOUR CONVICTION where you were NOT placed on community supervision of any kind and your sentence is complete. Texas splits nearly every nondisclosure section on the deferred-adjudication-versus-probation-versus-neither line, so if you were placed on community supervision of any kind, this is the wrong section and you should not file it.

ONE ORDER FORM, THREE SECTIONS. The proposed order in this packet is the state's model order for Secs. 411.0725, 411.073 AND 411.0735 together, and page 2 carries three boxes for the court to indicate which one applies. Yours is 411.0735. THE BOXES ARE NOT MARKED IN THIS PACKET and that is deliberate: the sentence above them says the COURT FINDS the petitioner entitled to file under the section indicated below, so marking one would assert a finding no court has made.

WHERE THIS IS FILED. File the petition with the CLERK OF THE COURT THAT SENTENCED YOU. That clerk forwards it to the court. Under Government Code Sec. 411.0745(a) you may file it in person, electronically or by mail. OCA instructions say that in most courts a proposed order must be submitted with the petition, which is why the proposed order is in this packet.

ONE OFFENCE, ONE ORDER. An order of nondisclosure applies to a single offence. If you want more than one offence sealed, that takes more than one order.

WHAT IT COSTS - AND THE NUMBER YOU SHOULD IGNORE.

Government Code Sec. 411.0745(b) says the petition must be accompanied by payment of a fee THAT GENERALLY APPLIES TO THE FILING OF A CIVIL CASE. Read carefully, that subsection sets the TYPE of fee, not an amount: there is no flat statutory figure for a petition-based nondisclosure, and your county's civil filing fee schedule governs. OCA instructions describe the total as TYPICALLY ABOUT \$280, VARYING BY COUNTY, and tell you to call the clerk.

SO CALL THE CLERK OF THE COURT YOU ARE FILING IN and ask what the civil filing fee is there, before you go.

NOW THE NUMBER TO IGNORE: \$28. You may have read that an order of nondisclosure costs \$28. THAT FIGURE IS NOT YOURS. It belongs only to the no-petition route under Government Code Sec. 411.072(c), and the committed record states in terms that it is not a filing fee at all. This is a petition route under Sec. 411.0735. Do not arrive at the clerk's window with \$28.

IF YOU CANNOT AFFORD IT. Paragraph 6 of the petition lets you choose between paying the fees and costs and filing a STATEMENT OF INABILITY TO AFFORD PAYMENT OF COURT COSTS under Texas Rule of Civil Procedure 145. That Statement is in this packet, on the statewide bilingual form approved by the Supreme Court of Texas in Misc. Docket No. 22-9090. Rule 145 requires the clerk to make that form available WITHOUT CHARGE AND WITHOUT YOUR HAVING TO ASK, so you are

entitled to it whether or not you use the copy here.

The Statement is sworn under penalty of perjury. Fill it from your own records - pay statements, benefit letters, bills - and not from memory. Nothing on it is filled in for you except your own name, date of birth, address, telephone number and email, because the platform holds no financial fact about anyone.

PAGE 11 OF THE STATEMENT ASKS FOR YOUR DATE OF BIRTH AGAIN, in three boxes under 'My date of birth is / Mi fecha de nacimiento es', and those three boxes are left for you to write. Copy them from page 2 of the same Statement. They are not filled in for a mechanical reason rather than a legal one: on this form the month box is one form field with the notary's month on page 12, so filling your birth month would also write in the notary's blank.

WHO GIVES NOTICE TO THE STATE - AND IT IS NOT YOU. Under Sec. 411.0745(e), on receipt of your petition THE COURT provides notice to the State and an opportunity for a hearing. The committed record states that you should not be charged for that notice. OCA instructions do direct a petitioner to show proof that the district attorney received a copy, and some counties expect it, which is why this packet includes a proof-of-delivery page marked CONDITIONAL. Ask the clerk whether that county wants it.

WILL THERE BE A HEARING? A hearing is required UNLESS the State does not request one before the 45th day after receiving notice AND the court finds that you are entitled to file the petition and that issuing the order is in the best interest of justice.

NOTARIZATION. Subchapter E-1 does not require the petition to be notarized. County practice may differ. Ask the clerk.

HOW LONG YOU WAIT. The waiting period under Sec. 411.0735 runs from the date you COMPLETED THE SENTENCE. Where the misdemeanor was punishable BY FINE ONLY, the date of completion is itself the date you may file. Otherwise you wait until the SECOND ANNIVERSARY of completion. That is why the completion date on the petition matters and why you take it from the court record rather than from memory.

THE BAR THE COURT APPLIES. Under Sec. 411.0735(c-1) the court may NOT issue the order if it determines that the offence was violent or sexual in nature. There is one carve-out and it is worth knowing: an offence under Penal Code Sec. 22.01 - assault - is excepted from that determination, so an assault conviction under 22.01 may still qualify. If your offence is anywhere near this line, get advice before filing.

YOU MUST NOT BE ELIGIBLE UNDER SEC. 411.073. Section 411.0735 is for a conviction with NO community supervision of any kind. If you were placed on community supervision, a different section governs and this petition is the wrong one.

WHAT THE ORDER ACTUALLY DOES - AND WHAT IT DOES NOT. Nondisclosure is SEALING, not expunction. The order prohibits criminal justice agencies from disclosing the record to the public, and the information is still disclosed to the individuals and agencies listed in Government Code Sec.

411.076(a). The clerk sends the order to the DPS Crime Records Service by the 15th business day; DPS forwards it to the agencies in Sec. 411.075(b) within 10 business days; and any person, agency or entity holding the information seals it within 30 business days of receiving it. The record is not destroyed and you should never say it does not exist.

WHEN TO STOP AND GET HELP INSTEAD.

- You were placed on community supervision of any kind. This is the wrong section.
- The offence might be characterised as violent or sexual in nature. Sec. 411.0735(c-1) lets the court refuse on that determination, and the only carve-out is a Penal Code Sec. 22.01 assault.
- Your sentence is not complete, or you are not sure of the completion date.
- You are not sure whether the misdemeanour was punishable by fine only, which decides whether you wait at all or wait two years.
- You have any other conviction or deferred adjudication other than a fine-only traffic offence, or you are not sure.
- The prosecutor opposes the petition or requests a hearing.
- There is a family violence FINDING or a family violence ALLEGATION anywhere in your record - an allegation stops this route even where no court ever made a finding - or any offence on the Sec. 411.074 exclusion list is in your history.
- You are not a United States citizen.

DOCUMENTS TO GET FIRST, AND WHO HAS THEM.

- Your Texas DPS criminal history record - the Texas Department of Public Safety Crime Records Service, following DPS form CR-63. It establishes the disposition and shows every other conviction and deferred adjudication.
- The judgment, and the discharge or dismissal order - the clerk of the court that sentenced you. It establishes which section applies, because Texas splits nearly every nondisclosure section on whether there was deferred adjudication, probation, or neither.

Route:

obligation:track-pathway:TX:tx_nd_conviction_no_supervision:petitioned-nondisclosure-for-an-eligible-conviction-411-0735